

# Introduction to the Constitution of Pakistan

The **Constitution of Pakistan** is the **supreme law** of the country that defines the structure of the government, the rights of citizens, and the principles of governance. It has undergone various changes since independence in **1947**, influenced by **Islamic ideology**, historical events, and political developments.

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## 1. Definition and Importance of a Constitution

### Definition

A **Constitution** is a set of **fundamental laws and principles** that guide the **political, legal, and administrative** system of a country. It defines:

- ✓ The **structure** of government (Executive, Legislature, Judiciary).
- ✓ The **rights and duties** of citizens.
- ✓ The **relationship** between the federal and provincial governments.
- ✓ The **legal framework** for law-making and governance.

### Importance of a Constitution

- 📌 Ensures **Rule of Law** – Prevents dictatorship by ensuring **no one is above the law**.
  - 📌 Defines **Government Structure** – Specifies the **roles** of the **Prime Minister, President, Parliament, and Judiciary**.
  - 📌 Protects **Citizens' Rights** – Guarantees **fundamental rights** like **freedom of speech, religion, and equality**.
  - 📌 Promotes **National Unity** – Establishes **common laws and values** for all citizens.
  - 📌 Ensures **Stability** – Provides a **legal framework** for running the country peacefully.
  - 💡 **Example:** In Pakistan, the **Constitution of 1973** defines the country as an **Islamic Republic** and ensures that **all laws align with Islamic teachings**.
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## 2. Ideological Factors That Shaped the Constitution (Objectives Resolution 1949)

After independence, Pakistan needed a **constitutional framework** that reflected its **Islamic identity** and the vision of Quaid-e-Azam Muhammad Ali Jinnah. The **Objectives Resolution (1949)**, passed by Liaquat Ali Khan, became the foundation of Pakistan's constitutional development.

## Key Features of the Objectives Resolution (1949)

- 📌 **Sovereignty Belongs to Allah** – All laws must be in accordance with **Islamic teachings**.
- 📌 **Democracy, Freedom & Equality** – Pakistan will have a **democratic system** with **equal rights** for all citizens.
- 📌 **Islam as the State Religion** – The state will ensure that laws are **consistent with Islamic principles**.
- 📌 **Protection of Minorities** – Non-Muslims will have **religious freedom** and **full rights** as citizens.
- 📌 **Independence of Judiciary** – The legal system will ensure **justice and fairness** for all.

### ◆ Impact of the Objectives Resolution

- ✅ Became a **preamble** to the **Constitution of Pakistan (1973)**.
  - ✅ Strengthened **Islamic identity** in Pakistan's legal framework.
  - ✅ Influenced future **laws and policies**, including the **Hudood Ordinances** and **Shariat Court**.
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## 3. Overview of Constitutional Developments in Pakistan

Since independence, Pakistan has had **three major constitutions** and several amendments that shaped the country's governance.

### 1st Constitution (1956) – Pakistan Becomes an Islamic Republic

- 📌 Declared Pakistan as the "**Islamic Republic of Pakistan**".
  - 📌 Established **parliamentary democracy**.
  - 📌 **Equal status** to East and West Pakistan.
  - 📌 **Islam** declared the state religion.
- ◆ Why It Failed?
- ✗ **Weak political leadership** led to **martial law (1958)** by Ayub Khan.

### 2nd Constitution (1962) – Presidential System Introduced

- 📌 Introduced by **General Ayub Khan**.
  - 📌 Established a **Presidential system** instead of **Parliamentary democracy**.
  - 📌 Created a **unicameral (one-house) legislature**.
  - 📌 Limited **fundamental rights** and **press freedom**.
- ◆ Why It Failed?
- ✗ **Public opposition** led to the **removal of Ayub Khan** in 1969.

### 3rd Constitution (1973) – The Current Constitution

- ✚ Introduced a **parliamentary system** with a **Prime Minister and President**.
- ✚ Declared **Islam as the state religion** and ensured that **all laws must follow Islamic principles**.
- ✚ **Fundamental Rights** – Freedom of speech, religion, equality, and protection from discrimination.
- ✚ **Power Distribution** – Defined powers between **federal and provincial governments**.

#### ◆ Key Developments After 1973

- ✓ **8th Amendment (1985)** – Gave **more power to the President** (under Zia-ul-Haq).
- ✓ **17th Amendment (2003)** – Strengthened the **Presidency** (under Musharraf).
- ✓ **18th Amendment (2010)** – Restored **Parliamentary Democracy** and gave **more autonomy to provinces**.

# Structure of Government in Pakistan

The Constitution of Pakistan (1973) establishes a **parliamentary system** where the **executive, legislature, and judiciary** function as separate but interdependent branches. This system ensures a balance of power and prevents any branch from becoming too dominant.

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## 1. The Executive (Government) – Implementation of Laws

The **Executive** is responsible for enforcing laws and running the country's administration. It consists of:

### a) President (Head of State)

- The **President of Pakistan** is the ceremonial head of state.
- Elected by **both houses of Parliament and the four Provincial Assemblies**.
- Represents **national unity** and performs **formal functions** like signing bills into law.
- Appoints the **Prime Minister, Governors, and Judges** in consultation with relevant authorities.

### b) Prime Minister (Head of Government)

- The **Prime Minister** is the **most powerful** person in the executive branch.
- Elected by the **National Assembly**.
- Responsible for running the **government, making policies, and managing the cabinet**.
- Appoints **federal ministers and advisors**.

### c) Federal Cabinet

- Consists of **ministers, advisors, and special assistants**.
- Each minister leads a **government department** (e.g., Finance, Education, Health).
- Helps the **Prime Minister** in decision-making and policy implementation.

### d) Governors & Chief Ministers (Provincial Level)

- Each province has a **Governor** (appointed by the President) and a **Chief Minister** (elected by the Provincial Assembly).
- The **Chief Minister** runs the **provincial government** with a **Provincial Cabinet**.

## **e) Bureaucracy (Civil Services)**

- Civil servants help implement government **policies and laws**.
  - Includes **Deputy Commissioners (DC)**, **Assistant Commissioners (AC)**, and **Police Officers (IG, SP, DSP)**.
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## **2. The Legislature (Parliament) – Making Laws**

The **Legislature (Majlis-e-Shura)** is responsible for **making laws, passing budgets, and overseeing the government**. It has a **bicameral system**, meaning it consists of **two houses**:

### **a) National Assembly (Lower House)**

- **Directly elected** by the people for **5 years**.
- Members are called **MNAs (Members of the National Assembly)**.
- **Seats**: 336 (including reserved seats for women & minorities).
- **Responsibilities**:
  - Makes **laws** for the country.
  - Controls **government policies and budget**.
  - Elects the **Prime Minister**.

### **b) Senate (Upper House)**

- Members are **indirectly elected** by Provincial Assemblies.
- Senators serve for **6 years**, with elections for **half of the seats every 3 years**.
- **Seats**: 100.
- **Responsibilities**:
  - Protects **provincial rights** and ensures **continuity of policies**.
  - Reviews and approves **laws passed by the National Assembly**.

### **c) Provincial Assemblies**

- Each province has its own **Provincial Assembly**.
  - **Elected representatives (MPAs)** make **laws for the province**.
  - Elects the **Chief Minister**.
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### **3. The Judiciary – Interpreting and Enforcing Laws**

The Judiciary is responsible for interpreting laws, ensuring justice, and protecting the Constitution. It operates **independently** to prevent government abuse of power.

#### **a) Supreme Court (Highest Court in Pakistan)**

- Chief Justice of Pakistan (CJP) leads the Supreme Court.
- Final authority on constitutional matters, human rights, and legal disputes.
- Ensures that government actions follow the Constitution.

#### **b) High Courts (One for Each Province)**

- Each province has a High Court that hears appeals and constitutional cases.
- Headed by a Chief Justice.

#### **c) Federal Shariat Court**

- Ensures that laws follow Islamic principles.
- Can review any law that contradicts Islam.

#### **d) District & Session Courts (Lower Judiciary)**

- Handles criminal and civil cases at the district level.
- Led by Session Judges, Civil Judges, and Magistrates.

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### **Separation of Powers & Checks and Balances**

- The Executive (Government) implements laws made by the Legislature (Parliament).
- The Legislature (Parliament) holds the Executive accountable and can remove the Prime Minister through a vote of no confidence.
- The Judiciary ensures that both the Executive and Legislature follow the Constitution.

# Distribution of Powers Between Federal and Provincial Governments in Pakistan

## Introduction

Pakistan follows a **federal system of government**, where power is **divided between the federal (central) government and the four provincial governments**. The **Constitution of Pakistan (1973)** defines this distribution through **Legislative Lists** and other provisions. The **18th Amendment (2010)** further strengthened **provincial autonomy**, reducing federal control over several subjects.

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## Key Elements of Power Distribution

The **Constitution of Pakistan (1973)** divides powers into the following categories:

1. **Federal Legislative List (Part I & II) – Powers of the Federal Government**
  2. **Provincial Powers – Powers of the Provincial Governments**
  3. **Subjects of Joint Authority – Managed by Both**
  4. **Residual Powers – Left for Provinces**
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## 1. Federal Legislative List (Part I & II) – Powers of the Federal Government

The **Federal Government (Central Government)** has exclusive control over subjects listed in the **Federal Legislative List**, which is divided into **two parts**:

### Part I – Exclusive Federal Powers

The following subjects are controlled solely by the **federal government**:

- ✓ **Defense** – Armed forces, nuclear energy, war, and peace.
- ✓ **Foreign Affairs** – Diplomatic relations, embassies, treaties.
- ✓ **Currency and Banking** – Printing of money, State Bank of Pakistan.
- ✓ **Telecommunication** – Internet, mobile networks, postal services.
- ✓ **Trade & Commerce (International & Inter-Provincial)** – Export, import, tariffs, customs duties.
- ✓ **Citizenship & Immigration** – Nationality, passports, visas, refugees.
- ✓ **Highways & Railways** – National highways, federal roads, Pakistan Railways.

- ✓ **Civil Aviation** – Airports, air transport, PIA.
- ✓ **Nuclear Energy** – Power plants, atomic research.

## **Part II – Joint Federal and Provincial Role (Through CCI)**

These subjects require cooperation between the **federal and provincial governments** and are managed through the **Council of Common Interests (CCI)**:

- ✓ **Electricity** – Generation and distribution.
  - ✓ **Major Ports** – Karachi, Gwadar, etc.
  - ✓ **Regulation of Industries** – Factories, manufacturing policies.
  - ✓ **Mineral & Natural Resources** – Oil, gas, and mines regulation.
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## **2. Provincial Powers – Powers of the Provincial Governments**

Before the **18th Amendment**, there was a **Concurrent List**, meaning **both federal and provincial governments** could make laws on the same subjects. After **2010**, the **Concurrent List** was **abolished**, giving full control of several subjects to **provincial governments**.

### **Key Provincial Powers**

- ✓ **Education** – Schools, colleges, universities, syllabus (excluding HEC).
  - ✓ **Health** – Hospitals, healthcare policies, medical facilities.
  - ✓ **Agriculture & Irrigation** – Farming policies, irrigation systems, canals.
  - ✓ **Local Government** – Municipal corporations, district governments.
  - ✓ **Law & Order** – Police, prisons, crime prevention.
  - ✓ **Social Welfare** – Labor laws, relief for the poor, women's rights.
  - ✓ **Culture & Tourism** – Museums, historical sites, cultural policies.
  - ✓ **Roads & Transport** – Roads, provincial transport.
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## **3. Subjects of Joint Authority (Federal & Provincial)**

Some subjects require **cooperation** between **federal and provincial governments**, such as:

- ✓ **Environmental Protection** – Laws for pollution control, climate change.
  - ✓ **Disaster Management** – Relief efforts, earthquake & flood responses.
  - ✓ **Drugs and Medicines** – Drug regulations, medicine pricing.
  - ✓ **Water Distribution** – River water sharing between provinces.
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## 4. Residual Powers – Given to Provinces

Any subject not mentioned in the Constitution is automatically under provincial control.

Example: Culture, Sports, Local Festivals.

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## Impact of the 18th Amendment on Power Distribution

- 📌 More Provincial Autonomy – Provinces gained more independence in policymaking.
- 📌 Better Local Decision-Making – Provinces can make laws suited to their own needs.
- 📌 Challenges in Implementation – Some provinces lack resources to manage new responsibilities.
- 📌 Coordination Issues – Federal and provincial disputes over power-sharing still exist.

# 18th Amendment and Its Impact on Federalism in Pakistan

## Introduction

The 18th Amendment to the Constitution of Pakistan (1973), passed on April 8, 2010, is one of the most significant constitutional reforms in the country's history. It **strengthened federalism** by shifting power from the **central government** to the **provinces**, enhancing their autonomy. This amendment **removed the Presidential system's influence** and reinforced **parliamentary democracy**.

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## Key Features of the 18th Amendment

### 1. Strengthening of Provincial Autonomy

- Provincial powers increased by abolishing the **Concurrent List**, transferring **47 subjects** (e.g., education, health, environment) to the provinces.
- Provinces gained **control over natural resources** like gas, oil, and minerals.

### 2. Restructuring of Federalism

- Strengthened **Council of Common Interests (CCI)** to resolve conflicts between the **federal** and **provincial governments**.
- Provinces gained a greater **share in financial resources** through the **National Finance Commission (NFC) Award**.

### 3. Strengthening of Parliamentary Democracy

- The **Prime Minister** became the **most powerful executive**, while the **President's powers** were reduced.
- **Article 58(2)(b)** (which allowed the President to dissolve the National Assembly) was **removed**.

### 4. Independent Judiciary and Election Commission

- The **Chief Justice's appointment** became more transparent through the **Judicial Commission**.
- The **Election Commission of Pakistan (ECP)** was strengthened to ensure **free and fair elections**.

### 5. Renaming of Provinces

- The North-West Frontier Province (NWFP) was renamed Khyber Pakhtunkhwa (KPK), reflecting its Pashtun identity.
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## Impact of the 18th Amendment on Federalism

### 1. Increased Provincial Autonomy

- ✓ Provinces gained greater control over key sectors like education, health, and local governance.
- ✓ More decision-making power shifted to provincial governments.

### 2. Stronger Democratic System

- ✓ Restored true parliamentary democracy by reducing Presidential powers.
- ✓ Strengthened provincial representation in decision-making through the Council of Common Interests (CCI).

### 3. Financial Decentralization

- ✓ Provinces received a larger share of resources under the NFC Award, boosting their economic development.
- ✓ They could directly manage their own resources, reducing dependency on the federal government.

### 4. Improved Judicial Independence

- ✓ Ensured a transparent process for the appointment of judges.
- ✓ Reduced political influence in the judiciary.

### 5. Strengthened Local Governance

- ✓ The federal government cannot interfere in provincial matters unless necessary.
  - ✓ Encouraged better local-level governance and public service delivery.
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## Challenges and Criticism of the 18th Amendment

### 1. Capacity Issues in Provinces

- ⚠ Some provinces lack administrative capacity to manage newly devolved powers effectively.

### 2. Center-Province Conflicts

⚠ Federal and provincial governments often face **disagreements over resource distribution** and policy implementation.

### **3. Education and Health Challenges**

⚠ Provinces have **unequal development** levels, leading to **variations in educational and health standards** across Pakistan.

### **4. Federal Control Over Key Sectors**

⚠ Some argue that **national-level policies** (e.g., higher education, health) should remain under federal control for **uniformity**.

# **Overview of Fundamental Rights Guaranteed to Citizens by the Constitution of Pakistan (Articles 8-28)**

## **Introduction**

The Constitution of Pakistan (1973) provides Fundamental Rights under Articles 8-28 to ensure freedom, equality, and justice for all citizens. These rights are enforceable by courts, meaning that if a right is violated, a citizen can seek justice through the judiciary.

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## **Key Fundamental Rights (Articles 8-28)**

### **1. Article 8 – Protection of Fundamental Rights**

- Any law that violates fundamental rights is void.
- The government cannot make laws that take away these rights.

### **2. Article 9 – Security of Person**

- No person shall be deprived of life or liberty except under the law.
- Protects people from illegal arrest, detention, or killings.

### **3. Article 10 – Safeguards Against Arrest and Detention**

- A person who is arrested must be informed of the reason.
- They have the right to legal representation.
- Prevents illegal imprisonment.

### **4. Article 10A – Right to Fair Trial**

- Guarantees that every citizen gets a fair trial in courts.
- No one can be punished without due legal process.

### **5. Article 11 – Prohibition of Slavery and Forced Labor**

- Slavery is completely banned.
- Child labor and forced labor are prohibited.

## **6. Article 12 – Protection Against Retrospective Punishment**

- No one can be punished for an act that was not a crime when committed.

## **7. Article 13 – Protection Against Double Punishment and Self-Incrimination**

- A person cannot be punished twice for the same offense.
- No one can be forced to confess a crime.

## **8. Article 14 – Dignity of Man and Privacy of Home**

- Every person's dignity and privacy are protected.
- Torture and degrading treatment are prohibited.

## **9. Article 15 – Freedom of Movement**

- Citizens have the right to move freely within Pakistan.
- No one can be restricted from traveling unless by law.

## **10. Article 16 – Freedom of Assembly**

- People have the right to gather for peaceful protests.
- The government can ban unlawful gatherings for security reasons.

## **11. Article 17 – Freedom of Association**

- Citizens can form political parties, unions, or organizations.
- Political parties must not work against national sovereignty.

## **12. Article 18 – Freedom of Trade, Business, or Profession**

- Every citizen has the right to do any legal business or profession.

## **13. Article 19 – Freedom of Speech and Press**

- Citizens can express their opinions freely.
- The media has the right to publish news and opinions.
- However, speech must not harm national security, morality, or religion.

## **14. Article 19A – Right to Information**

- Citizens have the right to access public information.
- Government records must be transparent.

## **15. Article 20 – Freedom of Religion**

- Every citizen has the right to practice, preach, and propagate their religion.

## **16. Article 21 – Safeguard Against Religious Taxes**

- No person shall be forced to pay taxes for a religion they do not follow.

## **17. Article 22 – Safeguards in Educational Institutions**

- No student can be forced to study religious teachings of another faith.

## **18. Article 23 & 24 – Protection of Property Rights**

- Citizens can own, buy, and sell property freely.
- The government cannot take property without lawful reasons.

## **19. Article 25 – Equality of Citizens**

- All citizens are equal before the law.
- No discrimination based on gender, religion, or caste.

## **20. Article 25A – Right to Education**

- Free and compulsory education for children aged 5-16 years.

## **21. Article 26 & 27 – Non-Discrimination in Public Places & Employment**

- All citizens have equal access to public places (parks, hotels, shops).
- No one can be denied government jobs based on race, religion, or gender.

## **22. Article 28 – Preservation of Language and Culture**

- Citizens have the right to promote their language, culture, and identity.

# Overview of Principles of Policy (Articles 29-40) in the Constitution of Pakistan

## Introduction

The Principles of Policy (Articles 29-40) in the Constitution of Pakistan (1973) provide guidelines for the government to create policies that promote social justice, economic equality, and national progress. These principles are not enforceable by courts, but the government is expected to follow them in governance.

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## Key Articles and Their Overview

### 1. Article 29 – Responsibility of Government

- The government is responsible for applying the Principles of Policy in making laws.
- The President and Governors must ensure policies follow these principles.

### 2. Article 30 – No Legal Enforcement

- The Principles of Policy are not legally enforceable in court.
  - However, they guide the government in decision-making.
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## Social and Economic Principles (Articles 31-40)

### 3. Article 31 – Islamic Way of Life

- The government must enable Muslims to live according to Islamic teachings.
- Encourage understanding of the Quran and Sunnah.

### 4. Article 32 – Promotion of Local Government

- The government should encourage the formation of local governments.
- Special attention should be given to women's participation in governance.



## **5. Article 33 – Elimination of Prejudices**

- The state must work to **eliminate** racial, tribal, sectarian, and provincial prejudices.
- Promote **national unity and brotherhood**.

## **6. Article 34 – Equal Rights for Women**

- Ensure **full participation of women** in all aspects of national life.
- Provide **equal opportunities** in education, employment, and politics.

## **7. Article 35 – Protection of Family and Marriage**

- The state must **protect marriage, family, and children**.
- Ensure the **well-being of mothers and children**.

## **8. Article 36 – Protection of Minorities**

- Minorities should have **freedom to practice their religion**.
- The state must **protect their rights and cultural identity**.

## **9. Article 37 – Promotion of Social Justice**

The government should:

- ✓ Provide **education for all**, particularly free and compulsory primary education.
- ✓ Improve **healthcare and medical facilities**.
- ✓ Work to **eliminate illiteracy and unemployment**.
- ✓ Ensure people are not **forced into unsuitable jobs** due to financial difficulties.

## **10. Article 38 – Promotion of Economic Well-being**

- Prevent **concentration of wealth** in a few hands.
- Ensure **basic necessities** (food, clothing, shelter, education, healthcare) for all.
- Promote **social welfare and reduce poverty**.

## **11. Article 39 – Strengthening Armed Forces**

- The government must maintain **strong armed forces** for national security.
- Ensure the **defense and sovereignty** of Pakistan.

## **12. Article 40 – Promotion of International Peace**

- Strengthen relations with **Muslim countries**.
- Support **international peace and cooperation**.
- Oppose **colonialism and oppression**.

# Responsibilities of Pakistani Citizens (Article 5 of the Constitution of Pakistan)

## Introduction

The Constitution of Pakistan (1973) defines the duties and responsibilities of citizens under Article 5. This article ensures that every Pakistani remains **loyal** to the state and follows the **law**.

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## Article 5 – Loyalty and Obedience

### 1. Article 5(1) – Loyalty to the State

*"Loyalty to the State is the basic duty of every citizen."*

- ◆ Every citizen of Pakistan must remain **faithful** to the country.
- ◆ Actions against **national interest, sovereignty, or security** are not acceptable.
- ◆ **Patriotism** and working for the **progress** of Pakistan are expected from all citizens.

### 2. Article 5(2) – Obedience to the Constitution and Law

*"Obedience to the Constitution and law is the inviolable obligation of every citizen wherever he may be and of every other person for the time being within Pakistan."*

- ◆ All citizens must **follow the Constitution and laws** of Pakistan.
  - ◆ No one is above the law, including government officials, politicians, and common people.
  - ◆ Even **foreigners** within Pakistan's territory must **respect and obey** Pakistani laws.
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## Responsibilities of Pakistani Citizens

Based on Article 5, the following are the **main duties** of every Pakistani:

### 1. Loyalty and Patriotism

- Respecting and **protecting** Pakistan's **sovereignty**.
- Avoiding actions that **harm national security**.
- Contributing to the **development** of the country.

## **2. Obeying Laws and the Constitution**

- Following **traffic laws, taxation rules, and public safety regulations**.
- Respecting **judicial decisions** and legal processes.
- Avoiding **illegal activities** like corruption, smuggling, and terrorism.

## **3. Respect for National Institutions**

- Honoring **state institutions** like the judiciary, military, and police.
- Ensuring that **democratic values** are upheld.

## **4. Upholding Justice and Equality**

- Respecting the **rights of others**, including minorities and women.
- Avoiding **discrimination** based on caste, religion, or ethnicity.

## **5. Contribution to Society**

- Paying **taxes** honestly to support national development.
  - Participating in **social welfare activities** like education and charity.
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## **Consequences of Violating Article 5**

- **Disloyalty** to the state can result in **punishment for treason** (Article 6).
- **Breaking laws** can lead to **fines, imprisonment, or legal action**.
- **Acts against the Constitution** can be considered **criminal offenses**.

# Procedure for Amending the Constitution of Pakistan

The Constitution of Pakistan (1973) provides a clear procedure for amendments under **Article 238** and **Article 239**. Any changes to the Constitution require approval from Parliament, ensuring that no single institution can alter it arbitrarily.

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## 1. Who Can Propose an Amendment?

- Any **Member of Parliament (MP)** (from the National Assembly or Senate) can introduce a **Constitutional Amendment Bill**.
  - The bill must be in written form and submitted to either house of Parliament.
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## 2. Steps in the Amendment Process

### Step 1: Introduction of the Amendment Bill

- The bill is introduced in **either the National Assembly or the Senate**.
- After introduction, it is sent to a **parliamentary committee** for review.

### Step 2: Approval by Both Houses of Parliament

- The bill is discussed and voted on in **both the National Assembly and the Senate**.
- **Two-thirds majority** of the total membership of each house is required for approval.
- If any house **rejects** the bill, the process **ends** there.

### Step 3: Presidential Assent

- Once both houses pass the bill with a **two-thirds majority**, it is sent to the **President of Pakistan** for approval.
  - The President **cannot reject** the amendment; they can only **sign it into law**.
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### 3. Special Cases: Amendments Affecting Provincial Boundaries

- If an amendment affects **provincial boundaries**, it requires additional approval.
  - Approval from the concerned **Provincial Assembly** is necessary by a **simple majority** before the amendment can proceed.
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### 4. Can the Supreme Court Intervene?

- Unlike some countries, the **Supreme Court of Pakistan** cannot **block** or **review** a **constitutional amendment** passed by Parliament.
  - However, it can interpret the Constitution and ensure amendments do not violate its **basic structure**.
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### 5. Key Points to Remember

- ✓ Two-thirds majority in both houses is mandatory.
- ✓ President must sign but cannot reject the amendment.
- ✓ Provincial Assembly approval is needed for boundary changes.
- ✓ Supreme Court cannot strike down amendments, but it can interpret them.

# Notable Constitutional Amendments and Their Implications in Pakistan

## Introduction

The Constitution of Pakistan (1973) is the supreme law of the country. Since its adoption, it has been amended multiple times to address political, legal, and social changes. Some amendments strengthened democracy, while others increased centralization of power. Below are some of the most significant amendments and their impact.

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## 1st Amendment (1974) – Recognition of Bangladesh

### Key Changes:

- Removed references to East Pakistan and officially recognized Bangladesh.
- Amended the definition of Pakistan's territory.

### Implications:

- Accepted the reality of Bangladesh's independence after the 1971 war.
  - Adjusted Pakistan's legal framework to reflect new geographical boundaries.
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## 2nd Amendment (1974) – Declaring Ahmadis as Non-Muslims

### Key Changes:

- Declared Ahmadis as a non-Muslim minority.
- Defined a Muslim in the Constitution.

### Implications:

- Influenced religious and sectarian policies in Pakistan.
- Led to further legal and social discrimination against Ahmadis.

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## **8th Amendment (1985) – Strengthening Presidential Powers**

### **Key Changes:**

- Legalized actions taken by General Zia-ul-Haq during martial law.
- Gave the President the power to dissolve the National Assembly (Article 58(2)(b)).

### **Implications:**

- Shifted power from the Prime Minister to the President.
  - Made the government unstable, as Presidents could remove elected governments.
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## **13th Amendment (1997) – Weakening Presidential Powers**

### **Key Changes:**

- Removed the President's power to dissolve the National Assembly.

### **Implications:**

- Strengthened parliamentary democracy.
  - Prevented Presidents from dismissing elected governments at will.
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## **17th Amendment (2003) – Strengthening Musharraf's Rule**

### **Key Changes:**

- Legalized actions taken by General Pervez Musharraf.
- Allowed Musharraf to stay as President while also being the Army Chief.

### **Implications:**

- Extended military rule in Pakistan.
- Created controversy over civil-military relations.

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## **18th Amendment (2010) – Restoring Democracy and Provincial Autonomy**

### **Key Changes:**

- Removed Article 58(2)(b), taking away the President's power to dissolve the Assembly.
- Gave provinces more control over resources and policymaking.
- Renamed NWFP as Khyber Pakhtunkhwa.

### **Implications:**

- Strengthened democracy by giving more power to the Parliament and provinces.
  - Reduced the centralization of power in Islamabad.
  - Led to challenges in managing provincial responsibilities.
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## **21st Amendment (2015) – Military Courts for Terrorism**

### **Key Changes:**

- Allowed the establishment of military courts for handling terrorism cases.
- Was introduced after the APS (Army Public School) attack in Peshawar.

### **Implications:**

- Strengthened counterterrorism measures.
- Raised concerns about human rights and fair trials.